

Sandhya Kumari v. State of U.P.

Allahabad High Court · Division Bench · 8 April 2025 · 2025:AHC:50973-DB · WRIT - C No. - 10214 of 2025 · **Writ disposed of; 6.14 application to be decided and installments allowed.**

HEADNOTE

A consumer seeking installment payment of electricity arrears is to apply under Clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005. If that application is filed within a week, the authority shall decide it within six weeks and allow payment of the balance dues in installments.

FACTUAL SUMMARY

The petitioner, Sandhya Kumari, invoked Article 226 seeking a mandamus to the electricity distribution licensee (respondent no.2) to accept the outstanding electricity dues or bill in 10–12 easy installments. Counsel for the petitioner and for the licensee were heard. The petition did not put in issue the existence or quantum of the arrears; the only relief claimed was an installment facility for the balance amount.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment payment of electricity dues

HOLDING

A writ seeking mandamus to accept electricity arrears in a stated number of installments is disposed of by directing the consumer to apply under Clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005; if the application is filed within a week, the concerned authority shall decide it within six weeks and allow payment of the balance electricity dues in installments. ¶ 3-4

PRINCIPLE TAGS

installment-payment-clause-6.14

A consumer seeking installment payment of electricity arrears is to apply under Clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005. If that application is filed within a week, the authority shall decide it within six weeks and allow payment of the balance dues in installments. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — NUMBER AND SCHEDULE OF INSTALLMENTS

The writ prayed for 10–12 installments; the Court directed that installments be allowed under Clause 6.14 without fixing their number or periodicity. ¶ 2-4